# Data Breach, Disclosure or Data Leak
## WyIT 2004

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| **Policy Owner** | Department of Enterprise Services, Data Privacy |
| **Policy Contact** | Pat Potter, Deputy Chief Data Officer |
| **Policy Approver** | Wyoming Data Governance Committee (WDGC) |
| **Effective Date** | September 12, 2025 |
| **Next Review Date** | June 30, 2026 |
| **Policy Version** | 2026-09.1 |


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## Scope:

This policy establishes requirements for assessing potential exposure of sensitive information, activating appropriate response procedures, ensuring Governor's Office notification, and coordinating decisions regarding individual notification. This policy serves as a triage and coordination framework that triggers existing incident response and security threat response procedures established in WyIT 3010, Incident Response and WyIT 3009, Computer Security Threat Response.

This policy addresses the privacy-specific assessment requirements for determining sensitive information exposure and establishes coordination protocols with the Governor's Office and legal counsel for notification decisions. This policy supplements existing incident response procedures and does not replace technical response or security coordination established in other WyIT policies.

This policy does not change Agency responsibilities with respect to regulations that govern data exchanges, data privacy and data security requirements, or Agency responsibilities under Wyoming State Statute 16-4-202. No part of this policy is intended to supersede or supplant relevant federal and state controlling laws, rules, or regulations.

### Audience

This policy applies to all Executive Branch agencies, boards, and commissions staff (collectively referred to as "agencies"). This policy is also applicable to consultants, affiliates, third party vendors and temporary employees that use or store data.

### Definitions

Key Definitions, Acronyms, and Terms

### Authority

This policy is promulgated under the authority of Wyoming State Statute 9-2-2906 and its subsections, the Department of Enterprise Technology Services is required to adopt and enforce information technology standards, and promote efficient use of information technology throughout state government.

This policy is further promulgated under the authority of Wyoming State Statute 9-21-101, which authorizes the State CIO to adopt and enforce data security policies, establish standards for enterprise data analytics, and require every agency to adopt, enforce and maintain data governance.

It also requires every Agency to adopt, enforce and maintain data collection, access, and security policies that adhere to the standards established by the Office of the Chief Information Officer (OCIO).

## Policy Statements:

| # | Policy Statement | Mapped Regulations/Standards |
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| 1. | All suspected incidents involving potential exposure of sensitive data or information through breach, unauthorized disclosure, or data leak, regardless of format, structure, or formal asset designation shall be immediately reported to the Agency Official for Privacy (AOP) for assessment. | Wyoming Statute § 9-21-101 (Data Governance)<br><br>WyIT 2006, Agency Official for Privacy (AOP) |
| 2. | The AOP shall determine within 4 hours whether sensitive data or information through breach, regardless of format, structure, or formal asset designation was exposed and activate applicable incident response procedures and security threat response procedures as appropriate. | Wyoming Statute § 9-21-101;<br><br>WyIT 3009, Computer Security Threat Response;<br><br>WyIT 3010, Incident Response |
| 3. | Confirmed breaches, unauthorized disclosures, or data leaks involving sensitive data or information, regardless of format, structure, or formal asset designation shall be reported to the Governor's Office, the Chief Information Officer (CIO) and follow the security incident reporting procedure within 12 hours of confirmation, including preliminary assessment of scope, affected individuals, and potential public impact. | Wyoming Statute § 9-2-2906; (CIO Emergency Authority);<br><br>WyIT 3010, Incident Response |
| 4. | The AOP shall coordinate with the agency head or delegate and others as appropriate to determine if individual notification is required under applicable laws for breaches, unauthorized disclosures, or data leaks and to establish appropriate notification timeline, content, and delivery method. | Wyoming Statute § 9-21-101 (Data Governance) |
| 5. | For breaches, unauthorized disclosures, or data leaks affecting multiple agencies, the lead agency AOP shall coordinate Governor's Office notification and ensure inter-agency response coordination. | Wyoming Statute § 9-2-2906;<br><br>WyIT 3009, Computer Security Threat Response;<br><br>WyIT 3010, Incident Response |
| 6. | Agencies shall comply with all directives, guidance, and coordination requirements issued by Enterprise Technology Services leadership, including the CIO, Chief Data Officer (CDO), and Chief Information Security Officer (CISO), during | Wyoming Statute § 9-2-2902 through § 9-2-2906 (CIO Authority); |

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| | breach, disclosure, or leak assessment, response, and recovery activities. Such directives may include response prioritization, technical remediation requirements, communication protocols, and resource allocation decisions | Wyoming Statute § 9-21-101 (CDO Data Governance Authority) |

## Related State Policies, Processes, Procedures, and Standards

- WyIT 2001, Information Classification
- WyIT 2001-S1, Data Owner Standard
- WyIT 2001-S2, Data Steward Standard
- WyIT 2001-S3, Data Custodian Standard
- WyIT 2001-S4, Data Domain Standard
- WyIT 2001-G1, Information Classification Guide
- WyIT 2001-G2, Information Classification Procedures Guide
- WyIT 2004-GL, Information Breach Response Guide
- WyIT 2006, Agency Official for Privacy (AOP)
- WyIT 3009, Computer Security Threat Response
- WyIT 3010, Incident Response

## Applicable Federal, State or Industry Rules, Laws, and/or Regulations

- Wyoming Statute § 16-4-202 (Government Records)
- Wyoming Statute § 16-4-203 (Information Practices)
- Wyoming Statutes § 9-2-2902 through § 9-2-2906
- Wyoming Statute § 9-21-101
- Wyoming Statute § 9-2-2906

**REFERENCE ONLY**

- Health Insurance Portability and Accountability Act (HIPAA) - 45 CFR Part 164 (when agency serves as covered entity)
- Family Educational Rights and Privacy Act (FERPA) - 34 CFR Part 99 (when agency maintains educational records)
- Federal Privacy Act - 5 U.S.C. § 552a (when agency maintains federal records)

## Responsibilities

**Enterprise Technology Services (ETS) / Information Technology (IT) Responsibilities:**

- Provide technical assistance for breach assessment when requested by agencies.
- Maintain coordination capabilities through incidents escalated.

- Support multi-agency incident coordination through established CCERT procedures when activated.

**Agency Responsibilities:**

- Designate and maintain an Agency Official for Privacy (AOP).
- Ensure immediate reporting of suspected sensitive data or information, regardless of format, structure, or formal asset designation exposure to the AOP.
- Coordinate with the Governor's Office for confirmed breach notification within required timeframes.
- Ensure AOP coordination with agency head or delegate and others as appropriate for notification determinations.
- Integrate breach assessment procedures with existing incident response plans.

**User Responsibilities:**

- Report suspected breaches or potential exposure of sensitive data or information, regardless of format, structure, or formal asset designation immediately to designated agency contacts.
- Cooperate with breach assessment activities as directed by the AOP.
- Follow agency procedures for handling and protecting sensitive data or information, regardless of format, structure, or formal asset designation  to prevent exposure.

# Compliance & Exceptions:

## Compliance

Employees who violate this policy may be subject to appropriate disciplinary action up to and including discharge as well as both civil and criminal penalties. Non-employees, including, without limitation, contractors, may be subject to termination of contractual agreements, denial of access to IT resources, and other actions as well as both civil and criminal penalties.

## Exceptions

Exceptions may be requested for transfers and storage of Wyoming government information outside the United States and its territories as defined in 8 U.S.C. § 1101 through the Data and Privacy Exception Request process WyIT 3002, Exception Request. Exceptions will only be permitted if recipient countries ensure protection in accordance with the level of confidentiality of the information to be transferred as determined through the exception process.

No exceptions shall be given for the unencrypted transfer of sensitive information. All exceptions for alternative encryption methods should be requested in accordance with WyIT 3002, Security Exception Request. Any request made to the Chief Information Officer (CIO) that does not meet the equivalent security standards, may not be approved.

The request should specifically state the scope of the exception, along with justification for granting the exception, the potential impact or risk if the exception is not granted, risk mitigation measures to be undertaken by the agency, initiatives, actions and a time-frame for achieving the minimum compliance level with the policies set forth herein.

Any exception to established policy shall be defined and tracked as a risk to the state and established mitigating controls monitored by the agency.

## Responsible Department / Measurements

### Compliance Measurements:

1. Breach assessment completion within required timeframes (95% target).
2. Governor's Office notification compliance for confirmed breaches (100% target).
3. AOP designation across all agencies (100% target)
4. Integration of breach assessment procedures in agency incident response plans (100% target)

## Review/Approval:

### Date Issued/Review Date

This policy shall be reviewed at least annually and updated / reviewed / approved as defined in the Office of Chief Information Officer (OCIO) Policy lifecycle.

Factors that may trigger an out of cycle review are:

- Significant changes in administrative, legal, or regulatory requirements;
- Results of cybersecurity incidents or operational audits;
- Findings from compliance reviews or gap assessments;
- Changes in State or Federal policies impacting audit logging obligations; or
- Introduction of new technologies or retirement of existing systems that impact audit requirements.

The review and update process shall be coordinated by Governance, Risk and Compliance (GRC), completed by the policy owner and approved through the OCIO policy review workflow.

### Approval

This policy must be signed by the appropriate officer (listed below) before it is considered approved and put into force.

The review and update process shall be coordinated by the GRC team, completed by the policy owner and approved through the OCIO policy review workflow.

Jeffrey Clines
Officer Name

Director
Officer Title


Officer's Signature

2026-09-30
Date

## Revision History:

The current version of this policy, as identified in the Revision History below, supersedes all previous documents listed below.

| Version | Change | Author(s) | Date of Change |
|---|---|---|---|
| 2026-09.1 | ETS Director signature | GRC | September 2026 |
| 2025-09.2 | WyIT 2004, Information Breach, Disclosure or Data Leak, Updated Document Template | Pat Potter | September 2025 |
| 2024-06.1 | WyIT 2004, Information Breach, Disclosure or Data Leak, Originally Published | Wyoming Data Governance Committee (WDGC) | June 2024 |

# Audit trail

## Details

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| FILE NAME | WyIT 2004 Data Breach Disclosure or Data Leak Policy - 9/30/26, 7:37 AM |
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## Activity

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|---|---|---|
| SENT | chuck.grenfell@wyo.gov **sent** a signature request to:<br>• Jeffrey Clines (jeff.clines@wyo.gov) | 2026/09/30<br>13:38 UTC |
| SIGNED | **Signed** by Jeffrey Clines (jeff.clines@wyo.gov) | 2026/09/30<br>13:39:56 UTC |
| COMPLETED | This document has been signed by all signers and is **complete** | 2026/09/30<br>13:39:56 UTC |

The email address indicated above for each signer may be associated with a Google account, and may either be the primary email address or secondary email address associated with that account.